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Introduction

Two incompatible conceptions of the law of torts are discernible within the common law.¹ The first, and probably dominant, conception is that the defendant should be liable where he is at fault for causing the claimant loss unless there is a good reason why not. This model dominates liability for negligence. Lord Wilberforce in *Anns v Merton London Borough Council*² set out a two stage test for the existence of a duty of care which is the classic statement of this approach.³ The first limb of this test is that the defendant could have reasonably foreseen that his negligence would cause the claimant loss. This adds nothing to the principle that a defendant cannot be liable for negligence unless he is at fault in relation to the harm suffered by the claimant. This has caused some to conclude that the concept of a 'duty of care' is redundant.⁴ The second limb enables any considerations which ought to negative the duty to be taken into account. This could encompass every reason imaginable for denying liability. For example, imposing liability on the police for carelessly failing to catch criminals may be thought to create a perverse incentive to be excessively diligent in obtaining convictions;⁵ or imposing liability on a judge for the careless conduct of a trial may undermine the finality of dispute resolution;⁶ or holding the auditor of a company liable for the losses suffered by all those who invested in that company on the basis of carelessly prepared accounts would be to impose liability of indeterminate scope and amount.⁷

The House of Lords made a great deal of their abandonment of Lord Wilberforce's two stage test and its substitution with a three stage test: (1) was the claimant's loss as a result of the defendant's negligence reasonably foreseeable? (2) was there a relationship of proximity? (3) would imposing liability be fair, just,

¹ E Weinrib 'The Disintegration of Duty' in M Madden (ed) *Exploring Tort Law* (2005) 143.

² [1978] AC 728 (HL). ³ [1978] AC 728 at 751 (HL).

⁴ OW Holmes 'The Path of Law' (1897) 10 HL Rev 457 at 471–72; P Winfield 'Duties in Tortious Negligence' (1934) 34 Col L Rev 41; W Buckland 'The Duty to Take Care' (1935) 51 LQR 637; J Stone *The Province and Function of Law* (1946) 181–82; B Hepple 'Negligence: The Search for Coherence' (1997) 50 CLP 69. Compare *Bourhill v Young* [1943] AC 92 (HL) and *Palsgraf v Long Island Railroad Co* 248 NY 339, 162 NE 99.

⁵ *Hill v Chief Constable of West Yorkshire* [1989] AC 53 (HL). The Guildford Four and Birmingham Six cases show that the concern not to apply pressure on the police to obtain convictions and thereby encourage 'excessive diligence' is not a fanciful one. ⁶ *Sirros v Moore* [1975] QB 118 (CA).

⁷ *Caparo Industries plc v Dickman* [1990] 2 AC 605 (HL).

and reasonable?⁸ However, the underlying approach is essentially the same. The first stage is otiose, whilst the second and third stages collapse into a search for the good reasons which can be given for denying liability. (Can something be fair whilst unjust? Unreasonable but fair?)

On this conception 'the overall object of tort law is to define cases in which the law may justly hold one party liable to compensate another'.⁹ Within liability for negligence 'damage is the gist',¹⁰ and where there is no recovery for negligently inflicted loss it needs justification. Under this model, the role of the 'duty of care' in liability for negligence is as a 'control device',¹¹ primarily concerned with the diverse reasons why a particular defendant has an immunity from being liable for carelessly causing loss.¹² This conception of the law of torts I shall call the 'loss model'.

There is another conception of the law of torts.

'Tort' comes indirectly from the Latin *tortus* which means crooked or twisted. In modern French, 'tu as tort' means 'you are wrong'. 'Wrong' has the same origin as 'wrung' which is, again, twisted. We have a law of torts (plural) not a law of tort, just as we have a law of wrongs not a law of wrong.

A tort is a species of wrong.¹³ A wrong is a breach of a duty owed to someone else. A breach of a duty owed to someone else is an infringement of a right they have against the tortfeasor. Before a defendant can be characterized as a tortfeasor the anterior question of whether the claimant had a right against him must be answered.¹⁴ The law of torts is concerned with the secondary obligations generated by the infringement of primary rights. The infringement of rights, not the infliction of loss, is the gist of the law of torts.¹⁵ This conception of the law of torts I shall call the 'rights model'.

⁸ *Peabody Donation Fund v Sir Lindsay Parkinson & Co Ltd* [1985] AC 210 (HL) 239–41 (Lord Keith); *Yuen Kun Yeu v Attorney General of Hong Kong* [1988] AC 175 (PC (HK)) 190–94 (Lord Keith); *Rowling v Takaro Properties Ltd* [1988] AC 473 (PC (NZ)) 501 (Lord Keith); *Hill v Chief Constable of West Yorkshire* [1989] AC 53 (HL) 60 (Lord Keith); *Caparo Industries plc v Dickman* [1990] 2 AC 605 (HL) 617–18 (Lord Bridge) 633 (Lord Oliver) 658 (Lord Jauncey).

⁹ *Fairchild v Glenhaven Funeral Services Ltd* [2002] UKHL 22, [2003] 1 AC 32 at [9] (Lord Bingham); J Steyn 'Perspectives of Corrective Justice in Tort Law' John Maurice Kelly Memorial Lecture 4; C Wright 'Introduction to the Law of Torts' (1942) 8 CLJ 238; P Devlin *The Enforcement of Morals* (1965) 39–40; cf *Broome v Cassell & Co Ltd* [1972] AC 1027 (HL) 1114 (Lord Wilberforce).

¹⁰ *Gregg v Scott* [2005] UKHL 2, [2005] 2 AC 176 [99] (Baroness Hale).

¹¹ J Fleming 'Remoteness and Duty: The Control Devices in Liability for Negligence' (1953) 31 Can B Rev 471; *Dorset Yacht Co Ltd v Home Office* [1969] 2 QB 412 (CA) 426 (Lord Denning MR); *D v East Berkshire Community NHS Trust* [2005] 2 AC 373 [94] (HL) (Lord Nicholls).

¹² *Smith v Littlewoods Organisation Ltd* [1987] 1 AC 241 at 280 (HL) (Lord Goff).

¹³ P Birks 'The Concept of a Civil Wrong' in D Owen (ed) *Philosophical Foundations of Tort Law* (1995) 29; cf OW Holmes *The Common Law* (1881) 144.

¹⁴ W Blackstone *Commentaries on the Law of England* (1765–1769) vol 3, 2; *Allen v Flood* [1898] AC 1 (HL) 28 (Cave J); A Goodhart 'The foundations of tortious liability' (1938) 2 MLR 1.

¹⁵ *Admiralty Commissioners v The Owners of the SS Amerika* [1917] AC 38 (HL) 55 (Lord Sumner); *Donoghue v Stevenson* [1932] AC 562 (HL) 619 (Lord Macmillan).

For torts actionable per se, such as trespass, the rights model appears obviously preferable. However, it is no less correct for torts, such as the general rule in relation to slander, which are only actionable upon proof of consequential loss.

This work will seek to show the importance and truth of conceiving of torts as the infringement of primary rights.

Justice

A. Functions

Can the law of torts be explained as a free-standing subject, justified by the goals it might be thought to pursue? It is in relation to liability for personal injuries caused by accidents that the most consideration has been given to functionalist, or consequentialist, accounts of the law of torts. However, there is no reason why the goals radical reformers have identified could not be seen as of general application to the entire law of torts. Indeed, it is only by keeping the focus upon one narrow set of claims that sight can be lost of what the law of torts is about, and a functionalist account be made to appear plausible.

1. Compensation

Compensation for loss is commonly seen as the most important goal of the law of torts.¹ However, it is patently defective in ensuring compensation of either the deserving or the needy.² First, the law of torts is extremely narrow in its coverage. Only someone who suffers loss as a result of a tort, who can identify a tortfeasor who is able to pay, will obtain compensation. If we broadened our focus to, say, victims of accidents it becomes apparent that the law of torts offers little hope of compensation to most of those within society who are deserving or in need. If X has his leg broken by falling down the stairs through no one's fault, whilst Y's leg is broken by the carelessness of Z, why is X more deserving of society's largesse than Y?³ That the ultimate source of compensation is a collective fund paid for by a flat rate insurance premium, adds to the perception of injustice. Why, it is argued, should society favour the party in need who is lucky enough to fall within the

¹ eg G Williams and B Hepple, *The Foundations of Tort Law* (1976) 26.

² F James 'Accident Liability Reconsidered: The Impact of Liability Insurance' (1948) 57 Yale LJ 549 at 569–70; TG Ison *The Forensic Lottery* (1967) 1–30; R Abel 'A Critique of Torts' (1990) 37 UCLA 785 at 796–806; S Sugarman 'Doing Away With Tort Law' (1985) Cal L Rev 555 at 591–616; J Fleming 'Is There a Future for Tort?' (1984) 44 La L Rev 1193 at 1203–1207; J O'Connell and B Kelly *The Blame Game* (1987); P Bell and J O'Connell *Accidental Justice* (1997); H Luntz 'A Personal Journey Through the Law of Torts' (2005) 27 Syd LR 383.

³ P Atiyah 'Personal Injuries in the Twenty-First Century: Thinking the Unthinkable' in P Birks (ed) *Wrongs and Remedies in the Twenty-First Century* (1996) 1 at 22.

purview of the 'tort system'? This distributive inequity is increased by the very generous full compensation for all loss suffered, regardless of need or desert, which the law of torts affords to those lucky enough to fall within its scope, whilst those outside are left to much less generous compensation systems, such as state invalidity benefit. Secondly, the law of torts is expensive to run when compared with other compensation systems, such as the social security system.⁴ The fees of lawyers and others, whether in relation to court actions or, more commonly, settlements, are costly. Neither the issues of whether the defendant, or claimant, is at fault, nor the appropriate level of compensation, tailored as it is to the claimant's personal losses, may be easy to determine or agree. Flat rate payment systems are much more cost effective. Liability insurers also incur high costs in assessing and collecting premiums. Paying such a high price to compensate so few, appears irrational. Thirdly, the court's remedial responses which do not seek to compensate, for example punitive and restitutionary damages, make little sense if our goal is compensation of loss. From this perspective, such awards lead to inexplicable windfalls being conferred. Fourthly, why are damages awarded for 'losses' which are incapable of being satisfactorily made good by compensation, such as the pain from the loss of a foot, or the misery from the destruction of a family home? Only economic loss is capable of eradication by compensatory awards of money and this is the focus of other compensation schemes, such as social security.

2. Deterrence

The literature seeking to provide a theoretical explanation for the law of torts as a mechanism for deterring injury-causing conduct is voluminous.⁵ It can be argued that in the case of loss caused by accidents, a rational enterprise will expend money on safety precautions up to the point where the marginal cost will exceed the marginal savings in liability for torts. The theory is that the presence of liability for torts, whilst it will not, and cannot, prevent all accidents, will ensure the optimal level of safety precautions.

In practice, the problems with justifying the law of torts as a system for the deterrence of harm are well known.⁶ Although there is no doubt that the law of torts has some impact on conduct, and it may be that the costs of the system can be justified by their beneficial effects, the true comparison is not between having

⁴ P Cane *Atiyah's Accidents Compensation and the Law* (7th edn, 2006) 395–407.

⁵ eg W Landes and R Posner *The Economic Structure of Tort Law* (1987).

⁶ S Sugarman 'Doing Away With Tort Law' (1985) *Cal L Rev* 555 at 559–90; R Abel 'A Critique of Torts' (1990) 37 *UCLA L Rev* 785 at 806–819; P Cane 'Tort Law as Regulation' (2002) 31 *Common Law World Rev* 305; M Franklin 'Replacing the Negligence Lottery: Compensation and Selective Reimbursement' (1967) 53 *Virginia L Rev* 774 at 823–25; P Cane *Atiyah's Accidents Compensation and the Law* (7th edn, 2006) 424–58; B Hepple 'Negligence: The Search for Coherence' (1997) 50 *CLP* 69 at 84–6, 93; cf G Schwarz 'Reality in the Economic Analysis of Tort Law? Does Tort Law Really Deter?' 42 (1994) *UCLA Law Rev* 377.

the current law and no regulatory structure, but between the current system and other methods of regulating behaviour. The funds expended on the 'tort system' could be spent in more effective ways. In the language of the economist, we must consider the opportunity costs foregone in considering whether the 'tort system' provides value for money as a method of regulating conduct. There are many reasons for considering that the 'tort system' itself is not the (Pareto) optimal regime which can be devised for regulating behaviour.

First, the vast majority of claims are paid out of liability insurance. As the defendant does not personally pay, the deterrence impact is largely lost. The presence of 'no claims' bonuses, an excess, and the possibility of a defendant's premiums being subsequently increased after a claim, means that liability insurance does not completely negate the influence of the law of torts on conduct. However, it does significantly blunt it. In the long run, because of administrative costs, it makes better economic sense for most insurers to charge a flat premium determined by what the market will bear, rather than incur the expense of attempting to tailor the premiums charged to the degree of risks being run by each person insured. Consequently, the careless and the careful will pay much the same.

Secondly, the quantum of liability imposed, and the consequential encouragement to take care, bears no relationship to the defendant's blameworthiness. A momentary lapse of judgment by a driver of a car which results in a commercial barrister being injured and unable to work will result in a vast award. The advertent and reckless running of a risk may result in a much lower quantum of damages if the tortfeasor is lucky enough to kill rather than maim his victim.

Thirdly, the law of torts probably has little, if any, effect in deterring an individual's brief moment of inattention or absent-mindedness. It is too much to expect the law of torts to change human nature, and to have anything but negligible impact upon behaviour which has not been reflected upon. Even in relation to the behaviour of businesses or other enterprises over time, it is improbable that in practice they possess the information required to calculate the potential costs and benefits of their activities in anything but the most rough and ready manner.

Fourthly, the impact of the 'tort system' on conduct is insignificant when set alongside the other factors which influence our behaviour. The vast majority of drivers take care not to run over other people because they consider it morally wrong carelessly to injure others. Within the law, the criminal law, whether in relation to speed limits, anti-social behaviour orders, or life sentences for murder, has much more impact upon behaviour than the law of torts. There are other more effective and efficient extra-legal ways of regulating conduct, from the self-regulation of professional bodies through to advertising campaigns against drink driving. If there were no other influences on our behaviour, the 'tort system' might have significant impact; as it is it has very little.

In order to assess the claims sometimes made that the law of torts plays a significant role in regulating conduct empirical evidence is necessary. The evidence

available for the deterrent impact of the law of torts is thin, and the results are, at best, equivocal.⁷

3. Other Goals?

Once deterrence and compensation have been put to one side, the other possible functions of the law of torts can be dealt with relatively briefly. It is sometimes said that torts serve a loss distribution function.⁸ If a manufacturer of a defective ginger beer bottle is held liable for the injuries someone suffers as a result, its liability will be passed on either to its customers through raising the price of its products or through liability insurance to the pool of those who pay premiums. Instead of the loss falling as a crippling blow upon one person, many persons bear a much smaller loss.

Much the same sort of objections to this argument can be raised as are raised to seeing the law of torts as a compensation system. Its coverage is extremely narrow. Why should it be this particular manufacturer who acts as a conduit for the spreading of loss; why not another manufacturer or the state itself which can pass on the loss fairly and widely through taxation?

If we try to explain the law of torts, as we could the criminal law, as concerned with punishing those who fail in the duties expected of them by society, why is the law of torts' response generally not quantified by reference to the defendant's blameworthiness? Why should this particular claimant receive the 'windfall' of damages rather than someone else? Why not a professional group of claim bringers, perhaps employed by the state?

The problems with the various functions suggested do not disappear if we try to combine them together. Indeed, as these goals frequently point in diametrically different directions, it is difficult to imagine how a rational system could be constructed around any combination of them. The failure of any satisfactory functionalist account of the law has caused some commentators to conclude that the law of torts is merely symbolic.⁹ If so, it is an expensive symbol.

B. Reform?

The inevitable failure in practice of attempts to justify the law of torts as a free-standing 'system' serving external functions, if taken seriously to their logical conclusion, would lead us to accept that the law of torts makes no sense and should

⁷ eg D Dewes, D Duff, and M Trebilcock *Exploring the Domain of Accident Law* (1996) 414; D Harris et al, *Compensation and Support for Illness and Injury* (1984); Lord Pearson 'Report of the Royal Commission on Civil Liability and Compensation for Personal Injury' 3 vols (Cmnd 7054) (1978).

⁸ eg A Grubb (ed) *The Law of Tort* (2002) 26–27.

⁹ J Stapleton 'Duty of Care: Peripheral Parties and Alternative Opportunities for Deterrence' (1995) 111 LQR 301 at 302–303. Symbolic of what?

simply be abolished. In England, Professor Patrick Atiyah is most closely associated with this view. His original position was that the law of torts, in relation to personal injuries caused by accidents, should be abolished, to be replaced by a no-fault compensation scheme administered by the state for the purpose of compensating all accident victims.¹⁰ Such an approach, which has been adopted in New Zealand, has obvious attractions. The person in need because of injuries from an accident is not treated differently according to the fortuity of being able to pinpoint a solvent tortfeasor. Society's resources are used more effectively to compensate more people.

Despite these gains, such a system cannot be justified. Why should accident victims be accorded such favourable treatment? Why should victims of disease be excluded from coverage?¹¹ Disease victims are a far larger group, but this is not a principled basis for different treatment. The New Zealand scheme is disfigured by boundary disputes as to whether the claimant is the victim of an accident or some other sort of misfortune.¹² Unless the compensation scheme is artificially limited to one class of person, such as accident victims, it loses what attractions it had because of the cost implications. Even if victims of disease were brought within any scheme, why should the boundary be drawn there? Why not all victims of the vicissitudes of life? Why exclude the elderly, the unemployed, or the educationally disadvantaged? The different treatment of one class of the needy is particularly stark if, as in New Zealand,¹³ compensation is limited to economic need rather than pain and suffering. Why should one class of the poor be singled out for favourable treatment?

They should not. Most developed states have a system of social security funded from general taxation to meet the basic needs of the poor. Special provision for those with needs arising from disability, however caused, is also in place. What the appropriate levels of compensation should be is an important matter for political debate. The law of torts is not a proxy for the achievement of the same sort of goals. The no-fault compensation schemes which are put in place of the areas of the law of torts which are cut back lack the moral underpinnings necessary to be secure against a change in political climate. Indeed, no-fault schemes take the justification for their scope from the 'tort system' which they replace.

Professor Atiyah finally adopted the position that the original diagnosis of what was wrong with the 'tort system' was correct but that the appropriate cure was that it should largely be abolished without anything being put in its place. Individuals would then be free to take out first party insurance to protect themselves against harm as they saw fit.¹⁴ Such a reform avoids the problems of arbitrary line-drawing

¹⁰ P Atiyah *Accidents, Compensation and the Law* (3rd edn, 1980) 627.

¹¹ See generally J Stapleton *Disease and the Compensation Debate* (1982).

¹² K Oliphant 'Defining "Medical Misadventure" Lessons from New Zealand' (1996) 4 Med LR 1.

¹³ Accident Compensation Act 1972.

¹⁴ P Atiyah 'Personal Injuries in the Twenty-First Century: Thinking the Unthinkable' in P Birks (ed) *Wrongs and Remedies in the Twenty-First Century* (1996) 1.

associated with his earlier view. It is the logical end position of those who think that the law of torts needs to be justified by its consequences.

Although the criticisms aimed at the law of torts generally focus upon the law of personal injuries, there is no reason to suppose that the goals identified are any better served in any other context. Once we contemplate abolishing the law of torts altogether, which would mean the abolition of most of our legal rights, the error becomes plain. The law of torts is not a free-standing subject which exists to fulfil any of the goals identified. If it is responded that the criticisms are only aimed at our right not to be injured or killed, it is legitimate to ask why this particular right is deserving of abolition. Why should our right not to be injured or killed by others be treated *less* seriously than our rights not to be defamed or have our land trespassed upon?

Once it is realized that the law of torts is concerned with the vindication of our rights, it becomes clear that attempts to shape its rules as if it was a free-standing subject concerned with fulfilling one of the goals set out above is to make precisely the same mistake as the abolitionist. For a court, or a reformer, to try and bend rules concerned with the vindication of rights to fulfil any of the goals set out above will lead to incoherence.

In *The Idea of Private Law*, Professor Weinrib makes the startling claim that private law is like love.¹⁵ By this he means that private law is only capable of being understood in terms of itself. We should not, and could not, seek to justify private law in terms of its extrinsic ends, regardless of whether these extrinsic ends come from social practice, morality, economic efficiency, or anything else. The main focus of his work which seeks to make good this (and other) propositions is the law of torts.

One response would be that if private law really does serve no function at all, why not just abolish it? A legal system is very expensive to run. Another response is that once we shift our focus from the law of torts to other areas of private law the claim that they are not to be justified in terms of extrinsic ends seems implausible. Is company law, for example, only capable of being understood from an internal legal perspective? Is its existence inevitable and unconnected with its usefulness? If the common law has not always had a law of companies, why not simply abolish it? The answer is that companies, which are an entirely legal construct and do not physically exist in the real world, are a useful way for human beings to organize themselves in the world in which we live. Some sort of functional explanation for this area of law is required.

However, although Professor Weinrib's claim about private law in general is not only counter-intuitive but implausible, it is true about the law of torts. If we see the law of torts as concerned with the secondary obligations generated by the infringement of primary rights, it is an essentially legal subject. The giveaway sign

¹⁵ E Weinrib *The Idea of Private Law* (1995) 6. See also WH Auden 'Law Like Love' in WH Auden *Collected Poems* (1991).

of this is its name. Lay people do not talk about 'torts'. They do talk about the things they own, their lives, their bodies, their families, their reputations, their voting, and so on.

C. Corrective, Distributive, and Commutative

If the account given in this book is correct, attempts to construct unitary theories to explain the law of torts are wrong-headed. The primary rights which, if violated, give rise to secondary obligations are diverse and arise for different reasons. Similarly, although the protection of these rights may have a number of incidental benefits, these should not be confused with what the law of torts is 'about'. Criticizing the law of torts for being a poor compensation system, or for its failure adequately to regulate conduct, is like criticizing the Apollo space programme for being an expensive way of developing non-stick pans.

There is nothing objectionable to *assessing* the law of torts according to external criteria¹⁶ (eg Is it efficient? Is it big? Is it beautiful? Is it fun? Does it lead to a fair distribution of resources?). However, the failure of the law of torts to match up to such criteria should not lead us to conclude that it makes no sense. The law of torts cannot be *understood* by reference to such criteria. The fact that the law of torts has coincidental effects should not lead us to conclude that these are its functions or goals. It is meaningless to talk of the law of torts having a function or goal at all. The idea that a legal institution can be justified without appeals to essentially utilitarian or consequentialist goals, appears bewildering to a layman, a politician, or an economist.

Attempts to understand the law of torts in terms of functions or goals fails, as Professor Weinrib shows in *The Idea of Private Law*,¹⁷ to explain key features of the law as we find it. For example, if we seek to argue that the law of torts is concerned with deterring reprehensible behaviour, why is it that it is this particular claimant who has been caused loss who can claim? Why not hold all persons guilty of such conduct liable to pay a fine to the state, graded according to the degree of fault? If the law of torts is concerned with compensating those who have suffered injuries, why is such compensation only given to those who suffer injuries as a result of the wrong of another? What is it that ties the claimant and defendant together?

For those reluctant to accept that the law of torts is a several-millennia-old mistake, made independently by disparate legal systems and foolishly persisted in by all, the idea that the law of torts is concerned with 'corrective justice' is attractive.

¹⁶ G Calabresi 'Some Thoughts on Risk Distribution and the Law of Torts' (1961) 70 Yale LJ 499; cf W Landes and R Posner *The Economic Structure of Tort Law* (1987) 1.

¹⁷ E Weinrib *The Idea of Private Law* (1995) 5–6.

Aristotle sought to divide issues of justice into two classes. The first class concerns issues of distributive justice. If a human good, for example wealth, is divisible amongst the members of a community, distributive justice is concerned with its overall distribution. The criteria by which the justice of any distribution can be assessed are diverse (eg need, merit, equality etc). The second class, corrective justice, concerns the justice that rectifies or remedies the inequalities which arise in dealings between individuals. 'As its name indicates, corrective justice has a rectificatory function. By correcting the injustice that the defendant has inflicted on the plaintiff, corrective justice asserts a connection between the remedy and the wrong.'¹⁸ A simple example is a man who defrauds another of his property. This is a central case because the fraudster's (factual) gain correlates with his victim's (factual) loss. However, in most cases there will be no such correlation, as in the typical case of someone who injures someone else who is then obliged to pay compensation.

Corrective justice seems to explain some of the key features of the law of torts. In particular it explains the central characteristic, so obvious as to be commonly overlooked, that the liability of the defendant correlates with a power of the claimant to claim. This is reflected in the requirement of causation, and the fact that recoveries go to the claimant rather than to the state. By contrast, according to some economists, the fact that the damages payable by the defendant are awarded to the party wronged is 'a detail'.¹⁹

Whilst less bad than an attempt to explain the law of torts through its functions or goals, a corrective justice account in this form is inevitably incomplete. It is compatible both with the loss-based and rights-based models of the law. For example, French law, which on its face is not a rights-based system is no less a system of corrective justice than the common law. Corrective justice in this form tells us nothing about the primary rights we do and do not have.²⁰ In this weak form, it solely explains the secondary obligations created by the infringement of primary rights.²¹ It would not offend this eviscerated form of corrective justice to abolish all of our primary rights. Given rights, their infringement will require correction. Further, the fact that the secondary obligations generated by the infringement of primary rights are corrective *in pattern* does not necessarily tell us anything about the justification for the underlying primary right. The difficulty with an attempt to explain the law of torts by relying upon this version of corrective justice is not that it is wrong, but that it is trite. Indeed, some corrective justice theorists suggest that it may be better to abolish our right not to be injured, and replace it with a no-fault compensation scheme administered by the state.²² In this weak form, corrective justice is compatible with any set of primary rights or none at all.

¹⁸ E Weinrib 'Corrective Justice in a Nutshell' (2002) 52 *Uni Toronto LJ* 349 at 350.

¹⁹ R Posner *Economic Analysis of Law* (2nd edn, 1977) 143; See also S Shavell *Economic Analysis of Accident Law* (1987) 29–30, 105–110.

²⁰ P Cane 'Distributive Justice and Tort Law' (2001) *NZLR* 401; *Harriton v Stephens* [2006] HCA 15 at [273] (Crennan J).

²¹ J Coleman *The Practice of Principle* (2001) 34–35.

²² Cf R Wright 'Substantive Corrective Justice' (1992) 77 *Iowa L Rev* 625 at 628.

Some commentators, such as Professor Weinrib, whilst mainly discussing the secondary obligations generated by a wrong, can be read as intending to use 'corrective justice' to explain our primary rights as well. On the wider approach, the term 'corrective justice' is not trite but misleading. In English, the language of 'correction' presupposes the wrongfulness of the conduct, and consequently, the primary right the violation of which needs correction. I have a right that you do not punch me on the nose; prior to your doing so, there is nothing to 'correct'. Where a primary right is specifically enforced, for example through an injunction or specific performance, it is inapt to describe this as justified in terms of *corrective* justice. There is no imbalance which is being remedied: the court is simply enforcing the *status quo*.

On the wider approach the label 'corrective justice' is intended to cover all justifications for rights which follow from what is just or fair as between any two members of society. This notion of justice can be invoked to explain both primary rights and the secondary rights of correction. This broader notion of justice is sometimes called 'commutative justice'²³ in order to encompass such cases, a label which is much less prone to mislead. It is unknowable whether Aristotle would have endorsed the wider or narrower account of 'corrective justice' as he never discussed the distinction between primary and secondary rights, nor did he attempt to articulate an account of the primary rights we have. The concept of rights lay in the distant future.

However, as an explanation for the existence and scope of *all* primary rights commutative justice is implausible. The legislature can, and does, create rights for a wide range of reasons not confined to the question of fairness as between any two members of society. The claim that private law is about commutative justice is only attractive in relation to judge-made law, where what is fair is, inevitably, determined through the resolution of the dispute between the two persons before the judge. However, even in relation to judge-made law, it is unpersuasive. As seen, in defining the scope of our primary rights the courts do take into account the general social benefit to *everyone* of an activity and the risks to *everyone* not just the claimant, which it poses. Ambulances are allowed to drive faster than delivery vans, although the risk they pose to a bystander is precisely the same. One person may have a (qualified) privilege to make a defamatory statement about another because of the legal or moral right of the recipient to be told. A defendant may be justified in inducing a breach of contract where not to do so would be the violation of a right of a third party.²⁴ The scope of our rights is not solely determined by considerations of what is fair as between claimant and defendant, ignoring all others.

²³ J Finnis *Natural Law and Natural Rights* (1980) 178–179.

²⁴ eg *Said v Butt* [1920] KB 597.

D. Why Do We Have the Rights We Do?²⁵

Possibly the most important objection to the rights-based conception of the law of torts is that it is essentially empty. However descriptively accurate the account of the law so far given may be, the sceptic will still need to know why we have the primary rights we do (and do not) have. A comprehensive account which explained the existence (and non-existence) of all of our actual (and possible) primary rights, would require a book several times the size of this one. However, a basic account can be given, although it may strike those familiar with the voluminous rights literature as naïve. Indeed, a parent will recognize his own attempts to inculcate respect for himself ('How would you like it if he did that to you?' 'Your sister had that first', 'You promised to tidy your room' etc). Fortunately, there is no necessity for an extensive discussion of the works of Kant and Hegel in order to understand and justify the rights recognized by the common law. Indeed, it would be surprising, and almost certainly misleading, to engage in this endeavour, as it is very doubtful whether those responsible for the common law, judges, either could have been or were familiar with the work of such philosophers. In order to understand and justify the law of torts it is unnecessary to be a profound thinker.

Two months after *McLoughlin v O'Brian*,²⁶ in which Lord Scarman had renounced the use of policy arguments, Lord Roskill in *Junior Books Ltd v Veitchi Co Ltd* stated:

Although it cannot be denied that policy considerations have from time to time been allowed to play their part in the last century and the present either in limiting or extending the scope of the tort of negligence since it first developed as it were in its own right in the course of the last century, yet today I think its scope is best determined by considerations of principle rather than policy.²⁷

The common law, which includes our most important primary rights against one another, is judge-made. Lord Roskill's view is that whilst our law was at some point in the past determined by policy choices made by judges, the time for such legislative action has gone.

If the law can be, and has been, shaped by the legislative acts of individual judges acting according to their own assessment of the weight to be given to a basket of frequently unarticulated policy concerns, all of our law which has not been set down by the legislature is up for grabs. A judge at a point in the hierarchy below the House of Lords will always be bound by previous decisions, just as he is by legislation. The House of Lords by contrast has the power to overturn any previous decision. There is no reason to suppose that the determination by an earlier

²⁵ As throughout, 'rights' is used in the sense of specific claim rights, or the claim rights which arise together for a common reason and which are specific to a larger bundle of different species of rights.

²⁶ [1983] 1 AC 410 (HL).

²⁷ [1983] 1 AC 520 (HL) 539.

court of the policy balance was superior to that which would be reached by the current court. Indeed, as the current court will presumably have a firmer grasp of modern social issues, it may be supposed that the policy choices of judges of today will be superior for modern conditions than those made by the long-dead. If members of the current court, acting as conscientious legislators, believe that the earlier policy choice was incorrect they would be free to substitute their own. All of our judge-made law would therefore be contingent upon the personal assessment of the correct policy balance by the current membership of the House of Lords. Why are rules based upon the choices of long-dead judges with no democratic mandate deserving, at least presumptively, of respect?

How can, and did, the judges of the common law, largely unfettered by legislation, determine what our rights are without resorting to policy choices? How, starting with a blank piece of paper, does, and did, a judge determine what the rights of the two parties in front of him are? An account of judicial decision making cannot be wholly interpretive because at some point in the past there was no text from which any interpretation could be derived. In the common law the judges did not start with an authoritative text, such as the United States Constitution, from which a complex set of rights could be extrapolated. Of course, in the modern common law, the problem is not that we lack authoritative text from which to derive the answers to difficult legal questions, but rather that we have too much. However, the foundational question of how the common law has legitimacy without an original text still needs to be addressed.

One answer could be that the common law judge was, and is, able to appeal to a still older set of rights determined by Roman law. However, this does not resolve the difficulty. Why should our rights be determined by the policy choices of Gaius or Tribonian, who are even longer dead than Lord Mansfield? Why should a court, in particular a supreme court, afford presumptive respect to such choices made by men (always men) from long ago? In common law systems other than England, the problem is even starker. Not only are the initial decisions ancient, they were made by foreigners.

The answer is twofold. The first stage is that the moral rights we have, and those which ought to be given the force of law, are capable of being deduced from the nature and experience of ourselves, and the world and society in which we live. Rational people can recognize such rights independently of their being given force of law. The recognition of such rights is not dependent upon the making of policy choices, nor is the decision to give them the force of law.

It follows that the rights which are solely sourced in judicial decisions are those sometimes labelled natural, human, or moral rights. 'It would not be too much of an exaggeration to say that the classical Common Law of the nineteenth and twentieth centuries was really a product of the eighteenth-century Natural Law tradition.'²⁸

²⁸ D Ibbetson 'Natural Law and Common Law' 5 (2001) Edin LR 4.

Indeed, the provisional account of rights good against the rest of the world set out at the start of this book would have been recognizable to Grotius in the 17th century.²⁹

The label 'moral rights' may be preferred as these rights are derived from human reflection, unlike a natural law, such as the law of gravity, which would continue to exist even if there was no one to observe it. Moral rights must be deduced by reason, they do not just exist like stones to be picked up or observed. The fashionable idiom is the label 'human rights' but as virtually all rights, whether moral or legal, are capable of being held by humans, this is less accurate. Further, in some context 'human rights' has also come to mean rights individuals have against the state to certain human goods.³⁰ Moral rights are not limited to rights against the state.

Moral rights are not the only sort of rights there can be. The legislature can create any legal rights it chooses, for any purpose. The right I have against the highway authority that the roads are in reasonable repair is not a moral right which exists independently of its legal recognition. Society could be organized around private roads with our ability to pass down them regulated by contracts, with their repairs met out of tolls. At one time this was commonplace, and it may be that in England a gradual return to such a regime will occur. It would not, however, be possible for the courts to create a public body with the responsibility of maintaining the roads funded out of general taxation, with a duty to repair imposed upon it, with corresponding rights conferred upon members of the public. Only a legislature can create such a right for the purposes of meeting one or more policy goals. Once a right has been given force and content by law, this provides an additional moral justification for respecting it, but there are many legal rights which have no existence independent of their legal recognition.

Rights which are recognized and created judicially not only have a different source, they are of a different sort. It is for this reason that judge-made law is peculiarly interesting and important, and why we must be wary of such judicially recognized rights being cut back by legislation. However, it does not, of course, follow from the proposition that the only legal rights that can be judge-made are those derived from moral rights, that it is only the courts which can give the force of law to our moral rights. The legislature can, and has, legislated to expand and restrict the legal force given to our moral rights.

Similarly, just as not all legal rights are moral rights, not all moral rights either are, or should be, given legal enforcement. I may have a moral right that you do not tell me lies; it does not necessarily follow that a legal system which did not always give recognition to such a right in all circumstances is necessarily defective. However, any legal system which gave no recognition to the minimum content of our moral rights would not be worthy of being described as a system of law at all. Moral rights come first. Judge-created legal rights are inevitably derived from moral rights.

²⁹ RW Lee *The Jurisprudence of Holland by Hugo Grotius* vol 1 (1926) 47(1).

³⁰ See, for example, the European Convention on Human Rights and Fundamental Freedoms.

Unlike most of our legal rights, there is no institutional set of rules from which we can mechanically identify moral rights. To determine them we each require experience, reflection, and discourse with others. Ultimately, however, we are each of us on our own.

In determining the minimum content of our moral rights, the starting point is the negative formulation of the golden rule. We should not do unto others what we would not want done unto ourselves. This must be accepted before any further progress can be made. The golden rule requires us to respect the choices and preferences of others. It requires that we treat others as if we were them, not as if they were us. If I am a masochist, who enjoys being tortured, it would not be acceptable for me to torture others simply because this would be what I would want in their place. One further aspect of the golden rule is that we are each deserving, *prima facie*, of equal concern and respect.

From the golden rule may be deduced our right to bodily safety.³¹ Human beings do not live forever. They are not covered in titanium so as to be invulnerable to physical harm. If we were incapable of being killed or injured, or conversely of killing or injuring, there would be no need for a right good against all others protecting our lives and bodily safety. This is not the world in which we find ourselves. Our right to freedom of movement may be similarly deduced. Human beings are not trees or limpets.

Moral rights not only do not require recognition by a legal system in order for us to discern their existence, they are also independent of the conventional morality of any particular society, although they commonly form part of such conventions. I have a moral right not to be killed or injured which is good against you, and everyone else, and there is nothing more which needs to be said. This is so even if the society in which I live has a convention favouring the ritual slaughter of lawyers (or anyone else). Similarly, we also all have a moral right to freedom of movement, regardless of whether slavery is lawful or generally considered acceptable within the society in which we find ourselves. Rules which are contrary to our moral rights are not necessarily not 'law' for that reason alone, but neither law nor convention can abrogate our moral rights.

Moral rights do not change over time, although their application may. If it is a wrong arbitrarily to discriminate against someone in the allocation of some public good, such as a university education, on the basis of his race or gender, and it is, it was always a moral wrong. Further, the correct answer to moral questions, such as whether an institution of slavery is morally wrong, cannot be authoritatively determined by democratic vote. The primary reason why we entrust judges to decide moral questions is because of their professional skills acquired from experience and a reflection upon justice, not because they have a hotline to popular opinion.

It is tempting to try to bolster the arguments for a moral right, or for its recognition and enforcement in law, by reference to the beneficial consequences of such

³¹ Cf HLA Hart *The Concept of Law* (2nd edn, 1994) 194–95.

a right. A right not to be killed may, and probably does, result in some fewer deaths. Such consequentialist reasoning is, however, both unnecessary and potentially misleading. Moral rights are capable of justification independently of their utility or consequences. Moral rights do not have functions or goals. Utilitarian or consequentialist arguments for their recognition can be adduced, but such arguments are otiose and apt to mislead us into thinking that without such arguments moral rights are unjustifiable. If we thought rights were justified by their beneficial consequences, they could be ignored where this would lead to a better overall result. If, for example, we thought a right to life was justifiable because it leads to fewer deaths, it would be acceptable to kill you for your organs if this could save the life of more than one other person. It might be argued by a utilitarian rule that a bright line exclusionary rule against killing was justifiable because of its prophylactic effect. If 'good' murders were acceptable, this would lead to more 'bad' murders. This seems to provide an explanation for the stability of rights and why they are usually of peremptory force. However, on this approach, it would be acceptable to kill you for your valuable organs to further the greater good if it could be demonstrated that this did not undermine the impact of the general prohibition on murder, perhaps if it could be done in secret. Our moral rights, and their legal recognition and enforcement, are not contingent in this way.

If it could be shown that the existence and enforcement by law of a right not to be killed, with correlative duties not to do so, led to no fewer deaths and no change for the better in human behaviour, would this be a good argument in favour of its abolition? It would not. It is simply wrong to kill other people; it is not a wrong because this leads to fewer deaths.

This does not mean that we should pay *any* price for a legal system which recognized and enforced such a right. If the legal system ate up 90 per cent of gross domestic product we might conclude that the enforcement of such moral rights by law was not worth the candle. However, the reason for the enforcement of rights is not that this will make the world a better place in the future, although it may do. It is consequently a mistake to attempt to shape our law of torts as if this was its purpose. We value moral rights for themselves and it is for this reason that we give them legal recognition and enforcement, not for any beneficial consequences which may flow from them.

The existence of our rights not to be killed, injured, or detained against our will are capable of being deduced from what is fair as between any two persons within society. It is fair, as between you and me, that you do not kill or torture me. This rule can then be universalized as between all individuals. However, the golden rule is not simply bilateral. It is sometimes argued that the golden rule is defective as it would lead to the absurd result that a judge could not sentence a criminal, as the judge himself may not be willing to have such punishment himself if he was in his place. However, a judge has undertaken an oath of office. This oath is given to the state for the benefit of all. A judge who refuses to sentence a criminal is in breach of this oath, and acts wrongfully as he is not behaving in relation to *all* others as he should.

More pertinently for the law of torts, as we have seen, the scope of our rights is not solely determined by what is fair as between claimant and defendant. In drawing the line between everyone's interest in security from physical harm and everyone's interest in liberty of action, the law takes into account the potential risks and benefits to *everyone* that an activity poses. Again, however, it is the golden rule which gives content to our rights, not the furtherance of a goal such as wealth maximization.

The temptation to try and explain by reference to their beneficial consequences other moral rights which are given the force of law is even stronger. Our right not to be lied to or our right that promises be kept are extremely important in facilitating co-operation and group living. They are, no doubt, extremely useful rights. Again, however, these beneficial consequences are unnecessary for their justification. Again, if they were necessary, the 'right' could be ignored where the beneficial consequences of respecting it were outweighed by the beneficial consequences of not doing so. As moral rights recognized by the law are justifiable independently of the benefits resulting from their recognition, they cannot be ignored where the benefits of respecting them are outweighed by the adverse consequences.

We all of us have an interest in knowing the truth. Without such knowledge we cannot make informed choices as to how to live our lives. Knowledge is as fundamental a human good as our physical well-being. A lie, which is believed and upon which the claimant acts, is a wrong to that person because of the violation of this human good. This is so regardless of whether there are, or are not, adverse consequences.³²

Similarly, our good relations with other people are valuable for themselves. In particular, the trust we have in one another is an interest all rational people value. A promise is a conventional way in which this bond of trust between persons can be invoked. Whilst it would be possible to imagine a society where promises did not exist, promises are not binding merely because of the social convention, but because of the interest in good relations between persons which the convention relies upon. Consequently, promises are intrinsically valuable.³³ By making a promise we invoke trust, and by breaking a promise we wrong those who have been led to trust us. Indeed, awareness of the promise at the time at which it is made is not necessary for the breaking of the promise to be wrongful. A promisee who subsequently discovers that a promise to him, of which he was unaware, has been broken is also wronged. Trust has been subsequently undermined although no expectations were generated at the time of promising. Similarly, the accessory right good against everyone else, that they do not induce the breach of a contract, protects this bond of trust between persons. 'The serpent was worse than Eve.'³⁴

³² Cf C Fried *Right and Wrong* (1978) ch 3.

³³ Cf J Raz 'Promises in Morality and Law' (1982) 95 Harv LR 916; D Kimel *From Promise to Contract* (2003) 27–29.

³⁴ T Weir *Economic Torts* (1997) 35.

There would be no necessity for property rights if human beings had no need of food, clothing, or shelter, or if we lived in a world of limitless abundance.³⁵ Again, this is not the world we find ourselves in.³⁶ The physical things which we both need and want are not in limitless supply. Some sort of property law is necessary. Regardless of whether we have a moral right to private property,³⁷ we have a moral right against the state to *some* system of property holding.

It would be possible for a society to have a communal property law completely different from the system of personal property rights found in the common law. Whatever the merits of communal property rights, it is not the sort of system of rights which is capable of being recognized by judicial act as it is beyond judicial competence to construct such a scheme of holdings through a sequence of bilateral disputes.

Private property rights may, in the long run, be useful to facilitate competition and an economically vibrant capitalist society. However, it is unnecessary to appeal to such beneficial consequences in order to justify the respect accorded to private property rights. Private property rights are morally justifiable in any event. We each of us desire for ourselves that we be secure in the things we possess. Each of us wants to be secure that others do not take our clothes from our backs, or that they do not destroy the crop we have grown, or the picture we have painted, or that we can sleep peacefully in our beds. In order for each of us to be able to choose to live our lives as we please, some level of security in relation to the personal possession of physical things is essential. Similarly, we also need security in our ability to choose how to dispose of these things to others, either during our lifetime or upon death. Just as we want these rights for ourselves, we cannot deny them to others.

In a pre-legal world, how can a judge resolve the competing claims of two individuals to a single item of property? Without any method for determining an overall fair distribution of assets, a judge is forced to adopt a system of rules based upon first occupation, taking or creation. The common law has adopted the rule of the playground. If I find a swarm of bees, my right to possess them is good against you because I possessed them first. What is fair as between you and me, is also fair as between me and everyone else. A judge lacks the competence to seek to determine title to property by other criteria, such as relative need. A plausible alternative rule would be to give priority to the party whose labour has gone into the property, by tilling the soil or repairing the car. However, this is of little assistance where no party has as yet worked upon the asset and the common law has adopted the straightforward rule of first possession. Other approaches, such as the tossing of a coin, cannot achieve the necessary stability. Various other methods of acquisition, such as prescription, accession, or specification are merely auxiliary, dependent upon the right arising from first possession. Within the common law,

³⁵ Cf HLA Hart *The Concept of Law* (2nd edn, 1994) 196.

³⁶ It is the world in William Morris's *News From Nowhere* and Gene Roddenberry's *Star Trek* where property rights are unnecessary.

³⁷ J Waldron *The Right to Private Property* (1988).

the priority afforded to possession is frequently decisive, although there can be few assets which have never at any time been possessed by anyone. A thief, or a squatter, acquires a possessory title which is prior in time, and therefore superior, to the title of anyone who did not already have a right to possess.³⁸ Property holdings determined by a rule of first possession will almost certainly not be the most productive or efficient distribution, but such goals are not the reasons behind the recognition of private property rights at common law.

Any system of property rights which is judicially created will, almost inevitably, not be distributively just. Any judge-made system of property rights needs to be supplemented. In order to facilitate the most basic level of human flourishing we all need food to eat, water to drink, clothes for our backs, and somewhere to sleep. Although it may be fair, overall, that I am taxed on the proceeds of this book and the money given to the poor, whether to tax and how to determine the appropriate level are not questions which can be determined by a judge-made rule.

Again, human infants are not born into the world able to look after themselves. Children remain for a long time dependent upon the care of others. It would be possible to live in a society where children were taken away by the state from birth and cared for communally. That is not the society in which we live, where it is accepted that individual parents, generally the child's natural parents, will have the bonds of love with their child that will lead to the best nurturing. From this, we can deduce a right a child has against its parents that they take positive steps to care for them. Similarly, parents have a moral right that others do not take their children away.

Finally, if our moral rights are violated or infringed we have a moral right against the wrongdoer that he will correct the wrong he has done. This obligation to correct, both in morality and law, takes the form of achieving the next best to the wrong not having been committed. For some wrongs, such as insults, the next best may take the form of an obligation to apologize. An apology may take the form of reparative action, for example personally caring for the person negligently injured may be considered to be to achieve a result closer to the wrong not having been committed than the mere payment of money for costs of care. Why not give legal force to such a right to an apology? One answer is that some moral obligations cannot be enforced by compulsion at all. We cannot be compelled by law to apologize for the wrongs we have done. An apology we are compelled to give is not an apology at all. The whole point of an apology is that it is a voluntary acknowledgment of the wrong by the wrongdoer. Compelled care is unlikely to be satisfactory. Courts make money awards not because this is the next best which the wrongdoer can do, but because this is the next best that courts can compel to be done.

However, it is a mistake to think that because moral rights do not depend for their justification upon the beneficial consequences of their recognition, they are

³⁸ *Costello v Chief Constable of Derbyshire Constabulary* [2001] EWCA Civ 381, [2001] 1 WLR 1437.

absolute and unqualified. If they can be justified regardless of any beneficial consequences, it might be thought that they must be respected whatever the consequences. If there is a murderer at your door wondering if his intended victim is inside your house, would it be a wrong to lie? In order to reject the position that lying is always wrongful it is unnecessary to resort to appeals to the adverse consequences which would follow. An absolute prohibition on lying ignores the possibility that rights can conflict, a possibility familiar to a lawyer.³⁹ One person's right may override that of another, conferring a privilege which would not otherwise exist.⁴⁰ If I am attacked I have both a moral and legal privilege as against my attacker to use reasonable force to protect myself. Similarly, I can tell lies to save my own life. Where the intended victim is someone else, his right not to be killed may confer a privilege upon me to tell a lie. Indeed, it would be both a moral and legal wrong to tell the killer the truth as to where his victim was to be found. Although the killer's interest in knowing the truth is not readily commensurable with his intended victim's interest in not being killed, our reflection upon how we ourselves would wish to be treated by others enables us not only to discern these interests but to rank them. Our rights are not absolute and the right not to be lied to is no exception. There are worse things in life than lies.

One of the attractions of utilitarianism is that it offers a single yardstick by which such incommensurable values as life and truth can be measured. However, rights cannot be overridden merely by the fact that, in the circumstances, it would be more useful not to respect them. It may be frustrating but there is no mathematical formula or single yardstick for the ordering of rights, nor can this ordering be deduced from a still deeper, but as yet unarticulated set of policies.

Once the basic building blocks of moral rights given the force of law are in place, judgment is then required as to the best way in which to put them together. The same process of reflection, one case building on the last, enables a sophisticated system to develop over time.

E. Why Don't We Have the Rights We Don't?

Why could there not be a legal right not to be caused economic loss (subject to exceptions)? Why not a general right not to be caused harm? Why not a right not to be insulted, as existed in Roman law? Why not a right against our spouses that they do not commit adultery? Why is it that the common law generally only gives effect to the negative formulation of the golden rule? Why not a right that others take positive steps to assist us, particularly where it would not be onerous for them to do so? There can be no simple answer to these questions as the varieties of legal rights we *could* have are as many and varied as the wit of human imagination

³⁹ J Waldron 'Rights in Conflict' *Ethics* 99 (1989) 503.

⁴⁰ JL Mackie 'Rights, Utility and Universalisation' in RG Frey *Utility and Rights* (1985) 86.

allows. No refutation of all possibilities is therefore possible, but the most significant limitations can be articulated.

The law's approach to moral rights takes one of three forms. First, the violation of the right may be actionable *per se*. Secondly, the violation may only be actionable if it has consequences, usually the suffering of loss. Thirdly the violation may give rise to no remedy at all. Our right to freedom of movement falls into the first category, the right not to be lied to into the second, and the right not to be insulted into the third. Some rights are more important than others. Assessing the weight to be given to a right is, in part, a question of social fact which can differ from one society to the next and can change over time. The Romans took insults more seriously than does the common law ('sticks and stones may break my bones'). The general interest of privacy, and the various rights which protect it, are increasingly taken more seriously by the law in a world where social conventions respecting this interest have become weakened.

All of the rights suggested above could in theory be recognized and enforced by a legal system. However, the broad rights, such as a right not to be caused economic loss, are not rights which can be judicially created. The second stage in determining the rights we do not have, goes back to the political and technical limits placed upon judicial decision making. If the courts were to recognize a general right not to be caused economic loss, *prima facie* all commercial competition or industrial action would be actionable. It would therefore be necessary for the courts to determine what is fair and unfair competition, and what sort of industrial action it was legitimate for a trade union to take. These are questions the court cannot give itself the power to resolve. It is only in this indirect way that policy questions are important in determining the legal rights we have. Policy is relevant because it cannot be relevant. The courts cannot create rights which require the answer to questions they cannot give. The conclusion, therefore, is the perhaps unhappy one that because of the inherent limits on how judges can behave, the common law system of rights will inevitably fall short of the ideal. There is only so far the judge can go. Judges alone cannot create a just society. They cannot determine who should have the right to vote, how levels of taxation should be fixed, who should receive social security payments, or what immigration controls, if any, should be in place.

If all insults were actionable, freedom of speech would be unacceptably curtailed and the court would be forced to decide where legitimate political speech began and ended. Similarly, how is a court to determine what constitutes acceptable conduct in a modern marriage? If we were under a general obligation to assist all other persons, instead of liability being imposed for how we have chosen to act, the law would be pursuing a policy of altruism to encourage useful intervention. Would such a policy encourage altruism, or would the existence of a legal order to come to the assistance of others undermine or mask our moral incentive to do so? It may be doubted whether those who live in common law countries are less altruistic than those who live in countries which impose positive legal duties to come to the assistance of others, and the policy choice is not an obvious one.

Judicially created rights are, inevitably, minimalist in content; with a corresponding maximalist approach to liberty of action. More generally, the judicially created private rights at common law, which give legal force to our moral rights, are concerned with maximizing the autonomy of each of us by enabling the greatest respect for one another, and how each of us chooses to live our lives. One example of this premium placed on freedom of choice is our ability to waive all of our rights. Indeed, the most significant limit upon our ability to waive our rights, at least in private law, is that we cannot waive our own ability to change our minds. I can consent to having my ears pierced by a beautician, but I cannot irrevocably give such permission, whether by contract or otherwise. If I communicate my change of mind, it would be a battery if the beautician went ahead anyway. Slavery is impossible not because it is impossible to agree to work for another and follow his or her instructions, but because it is impossible irrevocably to bind oneself to do so regardless of one's future self's choice. The protection of future choice is also seen in the rights of children. Children have a much more limited ability to waive their rights than do adults. A tattooist who tattoos a child commits a battery, however insistent the child is that he or she consents. This may be seen as protecting the ability of the child's future adult self to choose. We consider children to lack the ability to choose, which we cannot deny to their future selves. The ability to waive rights, even our right to life, indicates that the law is not protecting the subject matter of our rights as valuable in themselves, but rather as an indirect protection of autonomy. The absence of general positive duties to come to the assistance of others similarly supports this conclusion.

Rights do not seek to maximize aggregate choice overall. One aspect of my right to my land is that it removes your ability to choose for yourself whether to cross it. Rather, rights enable each individual freedom to choose how to live his life.⁴¹

Further, the rule of law places limitations upon the sort of rights which can, or at least should, be recognized.⁴² Although it would be possible to imagine rights not to be insulted or rights against spouses that they do not commit adultery, it is almost impossible to imagine how there could be a general right not to be carelessly caused loss or harm, with its boundaries determined by a rich array of policy concerns.⁴³ It is part of the rule of law that the rights others have against us are capable of being determined in advance. This is particularly important in relation to rights exigible against the rest of the world. A close analogy is with the criminal law. It would be theoretically possible to have a general offence of 'misbehaviour', subject to a number of policy exceptions which it was the job of the court to assess in each case. However, such a broad general offence would be unacceptable as it

⁴¹ This normative claim should not be confused with the analytic claim sometimes made that all categories of Hohfeldian right share the characteristic that they protect the right-holder's choices.

⁴² Cf J Henderson Jr 'Expanding the Negligence Concept: Retreat from the Rule of Law' (1976) 51 Indiana LJ 467.

⁴³ *Contra* D Howarth 'Many Duties of Care—Or a Duty of Care? Notes from the Underground' (2006) 26 OJLS 449.

could not be readily determined in advance what sort of conduct was an offence and what was not.

In the law of property, the same idea is reflected in the *numerus clausus* principle. Parties are not able to create any form of property right good against everyone that they choose. The list is closed and determinate so that others are able to anticipate in advance the content of the duties they are under and to whom they are owed. If a court is required to determine the scope of parties' rights and duties according to the weighing of a disparate range of open-ended policy concerns, the law itself is compromised. The approach within the law of property is but a species of a more general rule. It is one thing for the law to be settled for the future by a legislature creating rights determined by the weighing of policy concerns. It is quite another for such policy concerns to be incorporated into the law itself, so that parties in deciding how to act are required to guess in advance how they will be resolved by a judge. It is within liability for negligence that the invocation of such policy concerns is most prominent. Only if the duty of care is not a real duty, enabling real persons to determine *ex ante* what they are free to do, but rather a control device to be applied *ex post* in settling where losses fall, could it be thought acceptable to incorporate such policy concerns into the definition of 'duty'.